

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.C.R. 1002
(Reference to printed resolution)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Under the power of the referendum, as vested in the Legislature,
3 the following measure, relating to campaign contributions and expenses, is
4 enacted to become valid as a law if approved by the voters and on
5 proclamation of the Governor:

6 AN ACT

7 AMENDING SECTION 16-926, ARIZONA REVISED STATUTES; RELATING TO
8 CAMPAIGN CONTRIBUTIONS AND EXPENSES.

9 Be it enacted by the Legislature of the State of Arizona:

10 Section 1. Section 16-926, Arizona Revised Statutes, is
11 amended to read:

12 16-926. Campaign finance reports; contents

13 A. A committee shall file campaign finance reports with
14 the filing officer. The secretary of state's instructions and
15 procedures manual adopted pursuant to section 16-452 shall
16 prescribe the format for all reports and statements.

17 B. A campaign finance report shall set forth:

18 1. The amount of cash on hand at the beginning of the
19 reporting period.

20 2. Total receipts during the reporting period,
21 including:

22 (a) An itemized list of receipts in the following
23 categories, including the source, amount and date of receipt,
24 together with the total of all receipts in each category:

25 (i) Contributions from in-state individuals whose
26 contributions exceed ~~\$100~~ \$200 for that election cycle,
27 including identification of the contributor's occupation and
28 employer. Notwithstanding section 16-901, paragraph 29,
29 subdivision (a), a person whose residential address is

1 protected from public disclosure pursuant to section 16-153 is
2 not required to disclose the person's residential address and
3 shall instead provide an alternate mailing address. ~~[FOR ANY~~
4 ~~IN-STATE INDIVIDUAL WHOSE CONTRIBUTIONS ARE \$200 OR LESS FOR~~
5 ~~THAT ELECTION CYCLE, THE CAMPAIGN FINANCE REPORT MAY SPECIFY~~
6 ~~THE CONTRIBUTOR'S NAME, OCCUPATION AND EMPLOYER ONLY IF THE~~
7 ~~CONTRIBUTOR HAS CONSENTED TO THAT DISCLOSURE.]~~

8 (ii) Contributions from out-of-state individuals,
9 including identification of the contributor's occupation and
10 employer.

11 (iii) Contributions from candidate committees.

12 (iv) Contributions from political action committees.

13 (v) Contributions from political parties.

14 (vi) Contributions from partnerships.

15 (vii) For a political action committee or political
16 party, contributions from corporations and limited liability
17 companies, including identification of the corporation's or
18 limited liability company's file number issued by the
19 corporation commission.

20 (viii) For a political action committee or political
21 party, contributions from labor organizations, including
22 identification of the labor organization's file number issued
23 by the corporation commission.

24 (ix) For a candidate committee, a candidate's
25 contribution of personal monies.

26 (x) All loans, including identification of any endorser
27 or guarantor other than a candidate's spouse, and the
28 contribution amount endorsed or guaranteed by each.

29 (xi) Rebates and refunds.

30 (xii) Interest on committee monies.

31 (xiii) The fair market value of in-kind contributions
32 received.

33 (xiv) Extensions of credit that remain outstanding,
34 including identification of the creditor and the purpose of
35 the extension.

36 (b) The aggregate amount of contributions from all
37 in-state individuals whose contributions do not exceed ~~\$100~~
38 ~~\$200~~ for the election cycle ~~[AND WHO HAVE NOT CONSENTED TO BE~~
39 ~~IDENTIFIED IN THE CAMPAIGN FINANCE REPORT]~~.

40 3. An itemized list of all disbursements in excess of
41 \$250 during the reporting period in the following categories,
42 including the recipient, the recipient's address, a
43 description of the disbursement and the amount and date of the
44 disbursement, together with the total of all disbursements in
45 each category:

46 (a) Disbursements for operating expenses.

47 (b) Contributions to candidate committees.

- 1 (c) Contributions to political action committees.
- 2 (d) Contributions to political parties.
- 3 (e) Contributions to partnerships.
- 4 (f) For a political action committee or political
- 5 party, contributions to corporations and limited liability
- 6 companies, including identification of the corporation's or
- 7 limited liability company's file number issued by the
- 8 corporation commission.
- 9 (g) For a political action committee or political
- 10 party, contributions to labor organizations, including
- 11 identification of the labor organization's file number issued
- 12 by the corporation commission.
- 13 (h) Repayment of loans.
- 14 (i) Refunds of contributions.
- 15 (j) Loans made.
- 16 (k) The value of in-kind contributions provided.
- 17 (l) Independent expenditures that are made to advocate
- 18 the election or defeat of a candidate, including
- 19 identification of the candidate, office sought by the
- 20 candidate, election date, mode of advertising and distribution
- 21 or publication date.
- 22 (m) Expenditures to advocate the passage or defeat of a
- 23 ballot measure, including identification of the ballot
- 24 measure, ballot measure serial number, election date, mode of
- 25 advertising and distribution or publication date.
- 26 (n) Expenditures to advocate for or against the
- 27 issuance of a recall election order or for the election or
- 28 defeat of a candidate in a recall election, including
- 29 identification of the officer to be recalled or candidate
- 30 supported or opposed, mode of advertising and distribution or
- 31 publication date.
- 32 (o) Any other disbursements or expenditures.
- 33 4. The total sum of all receipts and disbursements for
- 34 the reporting period.
- 35 5. A certification by the committee treasurer, issued
- 36 under penalty of perjury, that the contents of the report are
- 37 true and correct.
- 38 C. For the purposes of reporting under subsection B of
- 39 this section:
- 40 1. A contribution is deemed to be received either on
- 41 the date the committee knowingly takes possession of the
- 42 contribution or the date of the check or credit card
- 43 payment. For an in-kind contribution of services, the
- 44 contribution is deemed made either on the date the services
- 45 are performed or the date the committee receives the services.
- 46 2. An expenditure or disbursement is deemed made either
- 47 on the date the committee authorizes the monies to be spent or

1 the date the monies are withdrawn from the committee's
2 account. For a transaction by check, the expenditure or
3 disbursement is deemed made on the date the committee signs
4 the check. For a credit card transaction on paper, the
5 expenditure or disbursement is deemed made on the date the
6 committee signs the authorization to charge the credit card.
7 For an electronic transaction, an expenditure or disbursement
8 is deemed made on the date the committee electronically
9 authorizes the charge. For an agreement to purchase goods or
10 services, the expenditure or disbursement is deemed made
11 either on the date the parties enter into the agreement or the
12 date the purchase order is issued.

13 3. A committee may record its transactions using any of
14 the methods authorized by this subsection but for each type of
15 contribution, expenditure or disbursement made or received,
16 the committee shall use a consistent method of recording
17 transactions throughout the election cycle.

18 D. The amount of an in-kind contribution of services
19 shall be equal to the usual and normal charges for the
20 services on the date performed.

21 E. If any receipt or disbursement is earmarked, the
22 committee shall report the identity of the person to whom the
23 receipt or disbursement is earmarked.

24 F. Candidate committee reports shall be cumulative for
25 the election cycle to which they relate. Political action
26 committee and political party reports shall be cumulative for
27 a two-year election cycle ending in the year of a statewide
28 general election. If there has been no change during the
29 reporting period in an item listed in the immediately
30 preceding report, only the amount need be carried forward.

31 G. For a political action committee that receives
32 individual contributions through a payroll deduction plan,
33 that committee is not required to separately itemize each
34 contribution received from the contributor during the
35 reporting period. In lieu of itemization, the committee may
36 report all of the following:

37 1. The aggregate amount of contributions received from
38 the contributor through the payroll deduction plan during the
39 reporting period.

40 2. The individual's identity.

41 3. The amount deducted per pay period.

42 H. An entity that makes independent expenditures or
43 ballot measure expenditures in excess of \$1,000 during a
44 reporting period shall file an expenditure report with the
45 filing officer for the applicable reporting period.
46 Expenditure reports shall identify the candidate or ballot
47 measure supported or opposed, office sought by the candidate,

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1 if any, election date, mode of advertising and first date of
2 publication, display, delivery or broadcast of the
3 advertisement.

4 2. The Secretary of State shall submit this proposition to the
5 voters at the next general election as provided by article IV, part 1,
6 section 1, Constitution of Arizona.

7 Enroll and engross to conform

8 Amend title to conform

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